

for determining when a local government should be liable for damages. See *infra*, at 681-683. Still, the governmental/proprietary distinction retains significance because it was so widely accepted when § 1983 was enacted. It is inconceivable that a Congress thoroughly versed in current legal doctrines, see *Monell v. New York City Dept. of Social Services*, 436 U. S., at 669, would have intended through silence to create the strict liability regime now imagined by this Court.

More directly relevant to this case is the common-law distinction between the "discretionary" and "ministerial" duties of local governments. This Court wrote in *Harris v. District of Columbia*, 256 U. S. 650, 652 (1921): "[W]hen acting in good faith municipal corporations are not liable for the manner in which they exercise discretionary powers of a public or legislative character." See *Weightman v. The Corporation of Washington*, 1 Black 39, 49-50 (1862). The rationale for this immunity derives from the theory of separation of powers. In *Carr v. The Northern Liberties*, 35 Pa. 324, 329 (1860), the Pennsylvania Supreme Court explained why a local government was immune from recovery for damage caused by an inadequate town drainage plan.

"[H]ow careful we must be that courts and juries do not encroach upon the functions committed to other public officers. It belongs to the province of town councils to direct the drainage of our towns, according to the best of their means and discretion, and we cannot directly or indirectly control them in either. No law allows us to substitute the judgment of a jury . . . for that of the representatives of the town itself, to whom the business is especially committed by law."

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*Boston*, 86 Mass. 41 (1862), negligent highway maintenance, *Hewison v. New Haven*, 37 Conn. 475 (1871), and unsafe school buildings, *Hill v. Boston*, 122 Mass. 344 (1877).